

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                               |                                                            |                           |                                                                                                                                                                                                                       |
|-------------------------------------------------------------------------------|------------------------------------------------------------|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Erin Sweeney                                                 | Team:<br>Squad #08                                         | CCRB Case #:<br>201505289 | <input type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 05/25/2012 12:00 AM, Thursday, 06/18/2015 5:02 PM | Location of Incident:<br>Wythe Avenue and North 5th Street | 18 Mo. SOL<br>12/18/2016  | Precinct:<br>94                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Tue, 06/23/2015 5:43 PM                              | CV Reported At:<br>IAB                                     | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 06/26/2015 9:21 AM                                                                                                                                                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)       | Shield | TaxID  | Command |
|--------------------------|--------|--------|---------|
| 1. POM Vladimir Radionov | 16072  | 939265 | 094 PCT |

| Officer(s)                | Allegation                                                                                                       | Investigator Recommendation |
|---------------------------|------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Vladimir Radionov | Discourtesy: On May 25, 2012, PO Vladimir Radionov spoke discourteously to § 87(2)(b) .                          | A . § 87(2)(g) [REDACTED]   |
| B . POM Vladimir Radionov | Abuse of Authority: On June 18, 2015, PO Vladimir Radionov searched the car in which § 87(2)(b) was an occupant. | B . § 87(2)(g) [REDACTED]   |
| C . POM Vladimir Radionov | Other: On June 18, 2015, PO Vladimir Radionov photographed the inside of § 87(2)(b) vehicle.                     | C . § 87(2)(g) [REDACTED]   |

### Case Summary

On May 25, 2012, at approximately 12:00 p.m., at Bedford Avenue and Lorimer Street in Brooklyn, § 87(2)(b) was stopped in his vehicle by PO Vladimir Radionov of the 94<sup>th</sup> Precinct. PO Radionov allegedly said, “Why the fuck did you pass the light?” to § 87(2)(b) (**Allegation A**).

On June 18, 2015, at approximately 5:02 p.m., in the vicinity of Wythe Avenue and North 5<sup>th</sup> Street in Brooklyn, PO Radionov stopped § 87(2)(b) in the same vehicle, a 15-passenger van. PO Radionov issued him a summons for § 87(2)(b) (Board Review 1). When PO Radionov approached § 87(2)(b) vehicle, PO Radionov glanced inside of § 87(2)(b) van through the open passenger window. Inside the van, he saw items such as sheetrock and plastic buckets marked with “flammable liquid” stickers. This established that § 87(2)(b) van was improperly registered, as it was registered as a personal vehicle, but he was clearly using the van for commercial purposes. PO Radionov opened the sliding door of § 87(2)(b) van and took one photograph of the contents of § 87(2)(b) van (Board Review 2), and then opened the doors at the rear of the van and took an additional photo (Board Review 3) (**Allegations B and C**). § 87(2)(b) was released with a summons for § 87(2)(b) (Board Review 4).

### Mediation, Civil and Criminal Histories

- On June 29, 2015, § 87(2)(b) was presented with mediation via telephone, and he rejected § 87(2)(b) (Board Review 5). On June 30, 2015, § 87(2)(b) was presented with mediation in-person, and he rejected it § 87(2)(b) (Board Review 6).
- This case has been submitted pending a FOIL request submitted on August 20, 2015, to determine if any Notice of Claim has been filed in regard to this incident (Board Review 7).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

- This is § 87(2)(b) second CCRB complaint (Board Review 9). § 87(2)(b)
- PO Radionov has been a member of service for ten years and has 17 total allegations, including the two from this case (Board Review 10). In case 201502018, threat of arrest and discourtesy allegations were substantiated, and charges were recommended by the CCRB. None of his other allegations were substantiated § 87(2)(g)

### Allegations not Pled:

§ 87(2)(g)

§ 87(2)(g)

**Allegation A-Discourtesy: On May 25, 2012, PO Vladimir Radionov spoke discourteously to**

§ 87(2)(b)

§ 87(2)(b) stated that he was driving his van that he uses for his job as a roofer as well as his personal use (Board Review 6). PO Radionov stopped him, approached his window, and said, “Why the fuck did you pass the light?” PO Radionov also told § 87(2)(b) that he should have commercial license plates. PO Radionov issued him two summonses: one for § 87(2)(b) and one for § 87(2)(b). § 87(2)(b) knew the date of this interaction and PO Radionov’s name because it was on the summons he received. § 87(2)(b) did not provide the summons to the CCRB.

PO Radionov stated that he did not recall stopping or interacting with § 87(2)(b) on this date, but acknowledged that when he stopped him on June 18, 2015, § 87(2)(b) said, “You are giving me a summons again!” (Board Review 11). He denied using any profanity with § 87(2)(b) on May 25, 2012. He knew this because he does not use profanity during car stops.

§ 87(2)(g)

**Allegation B-Abuse of Authority: On June 18, 2015, PO Vladimir Radionov searched the car in which § 87(2)(b) was an occupant.**

**Allegation C-Other Misconduct: PO Vladimir Radionov photographed the inside of § 87(2)(b) vehicle.**

§ 87(2)(b) stated that after he handed his license and registration to PO Radionov, PO Radionov opened the sliding door on the right side of the van (Board Review 6). He took photographs on his cell phone and then slammed the door. PO Radionov then opened the back of § 87(2)(b) van and took more photographs on his cell phone. PO Radionov never asked if he could open the doors, search the van, take photographs, or anything similar. § 87(2)(b) never told him that he could open the van door, that he could look around the van, that he could take photographs, or anything similar. PO Radionov never told § 87(2)(b) why he took photographs or what he was planning to do with them. § 87(2)(b) acknowledged that he had roofing materials, rubber, brushes, and insulation inside of his van, and it was clear that the van was used for the storage and transfer of materials that he uses in his job as a roofer.

PO Radionov stated that he approached the van on the passenger side, and § 87(2)(b) lowered the window (Board Review 11). PO Radionov asked for his license, registration, and insurance. While § 87(2)(b) was searching for his license, which was in his wallet, PO Radionov glanced in the back of the van through the passenger window. He saw “a lot of construction stuff,” including sheetrock and plastic buckets with “hazardous material” signs imprinted on them. There were no seats inside of the van, and the walls and ceiling were metal. He looked at the registration and saw that it was registered as a passenger van. He thought that the items in the backseat established that the van was improperly registered, as it should have been classified as a commercial vehicle. He asked § 87(2)(b) to unlock the doors. § 87(2)(b) did so and did not respond to PO Radionov’s request in any way. PO Radionov described § 87(2)(b) demeanor as “nice” and said he was compliant throughout the stop. § 87(2)(b) never told him that he could not open his doors or take photos. PO Radionov opened the van’s sliding door and took one

photograph of the contents of the van. He went to the back of the van and opened one of the doors. He took one photo to capture the contents of the van adjacent to the license plate. He only opened the side door and one of the back doors. He did not conduct a more invasive search than opening the doors and taking photos of the contents of the vehicle. He did not go inside of the vehicle or touch any of the items inside of the vehicle. The only reason he opened the doors and took photos was because he wanted to admit them into evidence in traffic court. He explained that civilians come into traffic court with evidence to support their cases, so PO Radionov felt compelled to do the same. When asked if he often takes photos of people's vehicles, he said, "Yes, this is my job," and showed the investigator examples of photos he had recently taken on his personal cell phone. When asked if taking photos was one of his responsibilities, he said that "Ten years ago, [he] did not take photos of nothing. Now, [he] take[s] photos." He takes photographs on his own volition and is not instructed by a supervisor to do so. He does not request permission from a supervisor, and uses his personal cell phone.

If officers have no articulable reason to suspect any criminal activity or to fear for their safety, a search of the vehicle is not justifiable. A traffic stop initiated after observing an ordinary traffic infraction will not justify a search of the vehicle. If an officer conducts a visual inspection of the interior of the vehicle that would have otherwise been hidden from plain view, this constitutes a search People v. Aquino 119 A.D. 2d 464 (1986) (Board Review 12). Patrol Guide 203-06 Section 17 states that members of service may only record encounters when prior supervisory authorization is obtained and when authorized Department technology is utilized. Members of service are prohibited from using any personal electronic/digital device to record video or take photographs during any encounter (Board Review 13).

§ 87(2)(g)

§ 87(2)(g)

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Pod: 8

Investigator: \_\_\_\_\_  
Signature Print Date

Pod Leader: \_\_\_\_\_  
Title/Signature Print Date

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Attorney: \_\_\_\_\_  
Title/Signature                      Print                      Date